

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/31/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002996

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MARITZA RAMIREZ

vs.

DEFENDANT: BUCHANAN
TECHNOLOGIES, INC.

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL OF
CLASS ACTION SETTLEMENT

RULING

This matter was called on June 26, 2026, for hearing on Plaintiff's motion seeking preliminarily approval of a wage and hour class action brought by Plaintiff on behalf of all other similarly situated current and former non-exempt employees and independent contractors of Defendant Buchanan Technologies, Inc. ("Defendant"). The Operative Complaint alleges violations of the California Labor Code and Wage Orders including that Defendant (i) failed to pay all overtime wages owed; (ii) failed to provide meal periods, or premium pay for non-compliant meal periods; (iii) failed to authorize and permit rest periods, or premium pay for non-compliant rest periods; (iv) failed to pay minimum wages; (v) failed to pay final wages on time; (vi) failed to issue compliant wage statements; (vii) failed to reimburse business expenses; and (viii) for violations of California Business & Professions Code Section 17200, et seq., based on the aforementioned California Labor Code violations.

The Class is composed of approximately 448 current and former non-exempt employees and independent contractors, whether hourly paid, commission-based or salaried, who worked for Defendant Buchanan in the State of California at any time from November 28, 2019, through January 14, 2026 (the "Class Period").

Defendant stipulates to settlement as a class action and does not file an opposition to Plaintiff's request. The parties did not file a joint request for settlement approval.

Following the hearing, Plaintiff submitted an addendum declaration, which has addressed the court's concerns. The request for preliminary approval is GRANTED and the class settlement is conditionally approved:

The terms are:

1. Defendant will pay a maximum of \$700,000.00, of which, \$481,500 will be distributed on a pro rata basis according to the total worked by each putative class member. There are approximately 448 employees who will benefit from the settlement.

2. The settlement period is November 28, 2019, through January 14, 2026.
3. No claims process is required. The putative class members are not required to submit a claim to be issued a settlement payment. The cost for claim administration is estimated at no more than \$11,000.
4. The Administrator will disburse the entire settlement amount based on a distribution process negotiated by the parties. Notice of settlement is to be distributed within 20 days of preliminary approval.
5. The class release is limited to: (a) failure to pay all overtime wages owed; (b) failure to provide meal periods, or premium pay for non-compliant meal periods; (c) failure to authorize and permit rest periods, or premium pay for non-compliant rest periods; (d) failure to pay unpaid minimum wages; (e) failure to pay final wages on time; (f) failure to issue accurate, itemized wage statements; (g) failure to timely pay all wages due upon separation of employment; and (h) claims of unfair business practice limited to the wage claims brought in the complaint.
6. Funds available after claims administration are proposed to be directed to Good For Others Foundation/Nonprofit & Workforce Development Consulting.
7. Cost of settlement administration shall be up to \$25,000 of the settlement fund;
8. Enhancement/Service Award to Plaintiff: Defendant will not oppose the application for a service award of up to \$7,500 for the Plaintiff, to be paid from the settlement fund;
9. Fees and Costs: Defendant will not oppose Counsel's application for fees of up to one third (35%) of the Gross Settlement Amount (currently estimated to be \$175,000).
10. Ali Sachani and S. Sean Shahabi of Jaurigue Law Group as Class Counsel.

The class settlement amount is approved as it appears to be fair and reasonable.

The court approves the notice and claims package attached as Exhibit A to the Sachani declaration.

Appearances are required for Counsel for Plaintiff suggest the date for calendaring the final approval hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/31/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004067

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: DAVID SOLOMON

vs.

DEFENDANT: CRISTINA ROSALES

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

Trial was originally scheduled in Department E, Hon. Andrew Sweet presiding on November 4, 2025. Defense counsel answered the trial call. Plaintiff’s counsel failed to show. The Issue Conference was set for the day before trial, on November 3, 2025, and again Plaintiff failed to show. The case was summarily dismissed.

Plaintiff filed a motion to set aside the default on December 17, 2025, pursuant to Code of Civil Procedure §473(b). Plaintiff’s request was GRANTED. In the order granting Plaintiff’s request, entered on March 25, 2026, the court stated:

When a court grants relief based on an attorney’s affidavit of default, §473(b) requires the court to “direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” Those fees are recoverable by motion. CCP §1005. In addition, the court may impose a penalty up to \$1,000, direct the attorney to pay up to \$1,000 to the State Bar Client Security Fund, or grant “other relief as is appropriate.” (§473, subd. (c)(1).) (*Talbott*, 109 Cal.App.5th 983-984.)

Defendant now proceeds with the motion for fee recovery pursuant to CCP §473(b). The request is GRANTED in its entirety.

CCP § 473(b) provides that (...The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties...). The award of fees is certainly appropriate here, considering the circumstances.

1. Reasonable Rate

Defendant’s counsel Lydia Goldman is Senior Counsel with Koyama and Costello, located in Walnut Creek, California. She states in his declaration that he has been admitted to practice in California and has “almost 40 years of experience.” Her practice is limited to civil litigation, and she serves as house counsel for CSAA insurance.